

Hariom v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 30 March 2018 · Writ-C No. 11030 of 2018 · WRIT - C No. - 11030 of 2018 · **Writ disposed; petitioner relegated to CGRF under clause 7.10.**

HEADNOTE

A writ seeking to quash a distribution licensee's electricity notice and to compel a corrected bill is not entertained when the consumer has an alternative remedy under clause 7.10 of the Electricity Supply Code, 2005 before the Consumer Grievance Redressal Forum and the Ombudsman. The petition is disposed of without examining merits, with liberty to approach the Forum, which is to pass a reasoned speaking order; an interim-relief application, if filed, is to be decided within three weeks.

FACTUAL SUMMARY

Hariom approached the Allahabad High Court against Madhyanchal Vidyut Vitran Nigam Limited, Harunnagla, District Bareilly, seeking certiorari to quash a notice dated 14 September 2017 and an interim mandamus staying that notice and directing the licensee to issue a correct electricity bill so that he could deposit the dues. Counsel for the Electricity Corporation raised a preliminary objection that the writ was not maintainable because the petitioner had an alternative remedy before the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy — CGRF and Ombudsman for billing grievance

HOLDING

The Court accepted the licensee's objection that a writ challenging an electricity notice and seeking a corrected bill is not maintainable because clause 7.10 of the Electricity Supply Code, 2005 provides an alternative remedy before the Consumer Grievance Redressal Forum and the Ombudsman. Without expressing any opinion on merits, the writ was disposed of with liberty to approach the Forum; on such approach with a certified copy of the order, the Forum is to do the needful in accordance with law by a reasoned speaking order. The petitioner may also seek interim relief, which if applied for is to be concluded within three weeks of filing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED NOTICE DATED 14.09.2017 AND THE CORRECTNESS OF THE ELECTRICITY BILL

Court expressly declined to express any opinion on merits. ¶ 1